

BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA

STATE OF OKLAHOMA, ex re.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE
Petitioner,

vs.

SHELIA BEATTY,
LPC, LICENSE NO. 4305
Respondent.

Complaint No. 2023-LPC-371



**ORDER OF REVOCATION OF
PROFESSIONAL COUNSELOR LICENSE**

This matter came on for hearing before the State Board of Behavioral Health Licensure (“the Board”) on February 9, 2024, at Oklahoma Office of Attorney General, 313 N.E. 21st Street, Henry Nesbitt – CR 1012, Oklahoma City, Oklahoma, pursuant to notice given as required by law and rules of the Board.

Liz Stevens, Assistant Attorney General, appeared on behalf of Petitioner. Respondent appeared in person and through counsel, David McKenzie. Ms. Stevens for Petitioner and Mr. McKenzie for Respondent are hereinafter referred to as the Parties.

The following exhibits were admitted into evidence.

Petitioner’s Exhibit 1: Plea of Guilty Summary of Facts, filed August 23, 2023 (certified copy) *State of Oklahoma v. Shelia Beatty Thompson* In the District Court of Oklahoma County, State of Oklahoma Case No. CF-2023-1721.

The following witness was sworn in and testified: Shelia Beatty.

The Parties waived opening statements and then presented their cases, starting with the Petitioner. The Parties then gave closing statements.

Following closing arguments by the Parties the Board entered into executive session to engage in deliberations, in accordance with 25 O.S. § 307(B)(8) and 75 O.S. § 309(D).

The Board, having considered representation of counsel, testimony of the witnesses, exhibits admitted into evidence, and being fully apprised of the premises, makes the following findings of fact, conclusions of law and orders:

FINDINGS OF FACT

1. Petitioner is a state agency with jurisdictional authority to regulate Licensed Professional Counselors, pursuant to 59 O.S. §§ 1901, *et seq.*
2. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 4305, and was licensed on or about January 14, 2010.
3. On August 23, 2023, Respondent pled Guilty to one (1) count of Medicaid Fraud in violation of 56 O.S. § 1005(A)(1) and one (1) count of Identity Theft in violation of 21 O.S. § 1533.1(B), Oklahoma County case number CF-2023-1721.
4. Respondent was sentenced to a three (3) year deferred sentence, prevented from billing Medicaid for duration of sentence, and ordered to pay restitution and other costs.
5. The offer of proof for the guilty plea (Petitioner's Exhibit 1) states that "Between 06/17/19 and 09/21/19, while in OK County, [the Respondent] caused false claims to be submitted to the Oklahoma Medicaid Program for payments in the aggregate amount of more than \$2500 for Medicaid services [the Respondent] did not personally render, by using the personal identities of Medicaid recipients to fraudulently obtain payments."
6. The Respondent's conduct violated the Oklahoma Licensed Professional Counselors Act, and the applicable Oklahoma Administrative Rules.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1905(B)(4) of the Licensed Professional Counselors Act.
2. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in fraud or deceit in connection with services rendered or in establishing needed qualifications. 59 O.S. § 1912(A)(2).
3. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by the rules established by the Board. 59 O.S. § 1912(A)(4).
4. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged negligence or wrongful actions in the performance of his or her duties. 59 O.S. § 1912(A)(5).

5. Any person determined by the Board to have violated any provision of the Licensed Professional Counselors Act or any Rule related to licensed professional counseling, may be subject to an administrative penalty, not to exceed \$10,000 for any related series of violations, pursuant to 50 O.S. § 1913.1 and OAC 86:10-29-14.
6. The Board found that the Petitioner has proven by clear and convincing evidence that the Respondent's Pleas of Guilty to one (1) count of Medicaid Fraud and one (1) count of Identity Theft shows that the Respondent is guilty of each of the violations described in the Complaint, as follows:
 - a. The Respondent engaged in fraud or deceit in connection with services rendered. 59 O.S. § 1912(A)(2).
 - b. The Respondent engaged in unprofessional conduct as defined by the rules established by the Board. 59 O.S. § 1912(A)(4).
 - c. The Respondent engaged in negligent or wrongful actions in the performance of her duties. 59 O.S. § 1912(A)(5).
 - d. The Respondent violated OAC 86:10-3-1, which provides that Licensed Professional Counselors shall not participate in, condone, or be associated with dishonesty, fraud, deceit, or misrepresentation.
 - e. The Respondent violated OAC 86:10-3-4(a), which provides that it is unprofessional conduct for a Licensed Professional Counselor to plead guilty or no contest to a state or federal statute if the violation directly relates to the duties and responsibilities of the counselor and poses a reasonable threat to public safety.

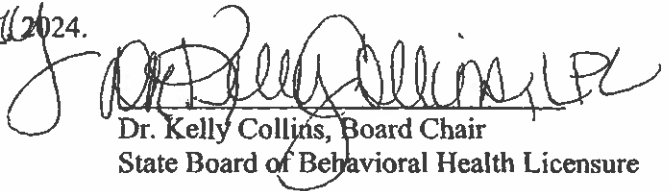
ORDER

IT IS THEREFORE ORDERED by the State Board of Behavioral Health Licensure as follows:

1. The Professional Counselor license of Shelia Beatty, license no. 4305 is hereby REVOKED.
2. An Administrative Fine of One Thousand Dollars (\$1,000) is hereby assessed.

This Order is subject to review and approval by the Oklahoma Attorney General, pursuant to Executive Order 2015-33, and this Order shall become final upon completion of the review by the Oklahoma Attorney General unless disapproved, in which case this Order shall be null and void.

Dates this 29 day of February 2024.


Dr. Kelly Collins, Board Chair
State Board of Behavioral Health Licensure

Certificate of Service

This is to certify that on the 29th day of February, 2024, the foregoing instrument was transmitted as indicated, postage prepaid, to the following:

U.S. First Class Mail

Shelia Beatty
429 E. Seminole Place
Tulsa, OK 74106
Respondent

U.S. Certified Mail return receipt requested

David McKenzie
401 N. Hudson
Ste. 100
Oklahoma City, OK 73102
Attorney for Respondent



Eric Ashmore, Executive Director

SENDER: COMPLETE THIS SECTION

- Complete Items 1, 2, and 3. Also complete Item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

David McKenzie
401 N. Hudson Ste 100
OKC OK 73102

2. Article Number

(Transfer from service label)

PS Form 3811, July 2013

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X

☐ Agent☐ Addressee

B. Received by (Printed Name)

C. Date of Delivery

D. Is delivery address different from Item 1? ☐ YesIf YES, enter delivery address below: ☐ No

3. Service Type

☐ Certified Mail®☐ Priority Mail Express™☐ Registered☐ Return Receipt for Merchandise☐ Insured Mail☐ Collect on Delivery

4. Restricted Delivery? (Extra Fee)

☐ Yes

Domestic Return Receipt

7015 1660 0000 2967 6969

PLACE STICKER AT TOP OF ENVELOPE TO THE RIGHT OF THE RETURN ADDRESS. FOLD AT DOTTED LINE.

CERTIFIED MAIL®



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7015 1660 0000 2967 6969

U.S. Postal Service™

CERTIFIED MAIL® RECEIPT

Domestic Mail Only

For delivery information, visit our website at www.usps.com®.

OFFICIAL USE

Certified Mail Fee

\$

Extra Services & Fees (check box, add fee as appropriate)

- ☐ Return Receipt (hardcopy) \$
- ☐ Return Receipt (electronic) \$
- ☐ Certified Mail Restricted Delivery \$
- ☐ Adult Signature Required \$
- ☐ Adult Signature Restricted Delivery \$

Postage

\$

Total Postage and Fees

\$

Sent To

David McKenzie
401 N. Hudson Ste 100
OKC OK 73102

City, State, ZIP+4®

Postmark
Here

Beatty

PS Form 3800, April 2015 PSN 7530-02-000-9047

See Reverse for Instructions

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3. Also complete item 4 if Restricted Delivery is desired.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

David McKenzie
401 N. Hudson St 100
OKC OK 73102

2. Article Number

(Transfer from service label)

7015 1660 0000 2967 6969

COMPLETE THIS SECTION ON DELIVERY

A. Signature

x Shelley Carson

☐ Agent

☐ Addressee

B. Received by (Printed Name)

Shelley Carson

C. Date of Delivery

D. Is delivery address different from item 1? ☐ Yes

If YES, enter delivery address below: ☐ No

3. Service Type

☐ Certified Mail® ☐ Priority Mail Express™

☐ Registered ☐ Return Receipt for Merchandise

☐ Insured Mail ☐ Collect on Delivery

4. Restricted Delivery? (Extra Fee)

☐ Yes

PS Form 3811, July 2013

Domestic Return Receipt